

To: County of Vulcan Council

June 8, 2026

Subject: Request for Postponement of Public Hearing Scheduled for Bylaw 2026-007

Dear Members of Council,

The LBR AI Data Centre Committee, through its representative, Ronald Girvitz, acknowledges receipt of your correspondence dated June 5, 2026, regarding our Freedom of Information request for records relating to communications and interactions between Vulcan County and Palliser Grid.

We are extremely concerned by the extent of the redactions applied to the responsive records. While the County identified a substantial volume of records responsive to our request, the overwhelming majority of those records were withheld in their entirety. As a result, meaningful access to information concerning a matter of significant public interest has been substantially impaired. The breadth of the redactions raises serious concerns regarding transparency, accountability, and the ability of affected residents to understand and evaluate the information that may be relevant to the County's consideration of the proposed land use re-designation.

Implications to the June 10th Public Hearing

The purpose of a public hearing is to ensure that affected residents are provided a meaningful opportunity to participate in the decision-making process and to make informed submissions prior to Council rendering a decision on a proposed land use re-designation.

Residents submitted a freedom of information request seeking records relating to communications between the Vulcan County and the proponent - Palliser Grid. The County identified approximately 291 responsive pages; however, 246 pages (85%) were released entirely redacted. If the County found 291 responsive pages, that establishes there was a substantial amount of interaction between the County and the proponent that is not being disclosed to the public. As a result, the public has been prevented from understanding a substantial body of information relating to this proposal.

As the records have been excessively redacted, we do not know whether these records contain discussions regarding water use, power requirements, noise impacts, environmental considerations, servicing arrangements, mitigation measures, or other matters directly relevant to Council's decision. Without access to this information, affected residents cannot fully evaluate the proposal or provide informed submissions at this hearing.

Regardless of whether the redactions are ultimately found to be justified, the fact remains that a significant amount of information concerning this project has not been available to the public prior to Council's consideration of this application. The absence of this information materially impairs the public's ability to participate meaningfully in the hearing process and undermines the ability of affected residents to assess the proposal on a fully informed basis.

For a land-use re-designation hearing, the public is entitled to understand the basis on which the proposal is being advanced. If hundreds of pages of communications between the County and the proponent remain hidden, residents cannot fully assess whether the application is appropriate or whether all relevant impacts have been considered.

The applicant and County administration have had the benefit of extensive communications over many months. Affected residents are being asked to comment on the proposal without access to the same information that has been provided to the proponent. This is procedurally unfair.

Due to this fact, the process lacks transparency making it impossible for the public to determine whether decisions are being made impartially and on the basis of proper planning considerations.

Lacking Procedural Fairness

If the County is making planning decisions that affect surrounding landowners, there is a requirement to allow the public to understand:

- The nature of communications with the proponent.
- Whether commitments were made before public hearings.
- Whether administration assisted the proponent in advancing the application.
- Whether alternative sites or impacts were discussed.

On this basis, I respectfully request that Council defer the June 10th Public Hearing and any consideration of Bylaw 2026-007 until the outstanding freedom of information matters have been resolved and the public has been given sufficient opportunity to review the records. In the alternative, I request that Council defer its decision until a determination has been issued by the Office of the Information and Privacy Commissioner of Alberta regarding the propriety of the extensive redactions applied to those records.

Given the significance of this proposed development and its potential long-term impacts on the community, full transparency and meaningful public participation are required. Proceeding with a decision while a substantial body of information remains unavailable to the public undermines the ability of the affected public to make fully informed submissions and diminishes public confidence in the decision-making process.

I also request that this correspondence be included in the official record for Bylaw 2026-007.

Thank you for your attention to this matter. I look forward to your response.

Sincerely,
On behalf of the LBR AI Data Center Committee

David Anderson
Little Bow Resort

CC:

Jason Schneider, Reeve, Division 3

Doug Logan, Division 7

Jodie Gateman, Division 1

Alex Horkoff, Division 2

Laurie Lyckman, Division 4

Kelly Nelson, Division 5

Christopher Northcott, Division 6

Nels Petersen, Chief Administrative Officer

Lansey Middleton, Manager of Legislative Services

Alena Matlock, Development Officer

jason.schneider@vulcan.ca

doug.logan@vulcan.ca

jodie.gateman@vulcan.ca

alex.horkoff@vulcan.ca

laurie.lyckman@vulcan.ca

kelly.nelson@vulcan.ca

christopher.northcott@vulcan.ca

cao@vulcancounty.ab.ca

ea@vulcancounty.ab.ca

devassist@vulcancounty.ab.ca